

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUBC052042: MAGDALENO TRUCKING, INC. vs CASEY HOUWELING

08/25/2026 in Department 43

Demurrer by LONGVINE CALIFORNIA, INC.

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions: Defendant Longvine California, Inc.'s Demurrer to First Amended Complaint

Tentative Ruling: The Court intends to continue this matter to September 22, 2026, and order defense counsel, Darren Neilson to meet and confer in person, by telephone, or by videoconference with opposing counsel in a reasonable and good faith attempt to informally resolve the issues raised in this demurrer.

It is conceded by the moving party that this Demurrer was filed without engaging in the meet and confer required by Code of Civil Procedure § 430.41(a)(2). In his declaration, defense counsel Darren Neilson incorrectly states that because he attempted to contact Plaintiff's counsel twice but was unsuccessful in connecting, that he "had no choice but to file" this Demurrer. The Court suggests Mr. Neilson familiarize himself with C.C.P. § 430.41(a)(2), which states:

"...If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and

serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and the demurring party shall not be subject to default during the period of the extension. Any further extensions shall be obtained by court order upon a showing of good cause.”

Rather than file a declaration and avail himself of the automatic 30-day extension, counsel opted to file this Demurrer. The Court encourages counsel to rectify this misstep, by meeting and conferring in a good faith effort to resolve the issues raised.

Defense counsel is ordered to file a report detailing counsels’ discussion and the outcome on or before September 11, 2026.

The Court schedules a second hearing on September 22, 2026, and orders defense counsel, Darren Neilson, to show cause as to why the Court should not impose a monetary sanction against him for not engaging in the meet and confer process required by Code of Civil Procedure § 430.41(a)(2). A declaration in response to the order to show cause shall be filed on or before September 11, 2026. Both the Demurrer and the Order to Show Cause shall be heard on September 22, 2026 at 8:30 a.m. in Courtroom 43.